



CHAPTER cl.

An Act to authorise the urban district council of Llan- A.D. 1905.
drindod Wells to make further provision with regard to
the improvement health local government and finance of
the district and for other purposes. [4th August 1905.]

WHEREAS the district of Llandrindod Wells in the county
of Radnor is an urban district within the meaning of
the Local Government Act 1894 and is under the management
and control of the Llandrindod Wells Urban District Council
(in this Act called "the Council") :

And whereas the acquisition of the Pump House Common
and the lake adjacent thereto would be of great advantage to
the district :

And whereas it is expedient that the Council should be
authorised to provide furnish maintain and use in manner in
this Act mentioned a town hall and other public buildings :

And whereas it is expedient that better provision should
be made with reference to streets and buildings within the
district and that the powers of the Council in relation to the
improvement of the district should be enlarged as by this Act
provided :

And whereas it is expedient that the Council should be
enabled to raise moneys for the purposes of this Act :

And whereas it is expedient that the other provisions in
this Act contained should be sanctioned :

And whereas the objects of this Act cannot be attained
without the authority of Parliament :

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—

And whereas an absolute majority of the whole number of the Council at a meeting held on the twenty-eighth day of November one thousand nine hundred and four after ten clear days' notice by public advertisement of the meeting and of the purpose thereof in the *Radnorshire Standard* being a local newspaper published and circulating in the district such notice being in addition to the ordinary notices required for summoning that meeting resolved to promote the Bill for this Act:

And whereas such resolution was published twice in the said *Radnorshire Standard* and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the twenty-seventh day of January one thousand nine hundred and five being not less than fourteen days after the deposit of the Bill for this Act in the Offices of the Houses of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been complied with:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the *Llandrindod Wells Urban District Council Act 1905.*

Interpretation.

2. In this Act unless the subject or the context otherwise requires—

“The Act of 1901” means the *Llandrindod Wells Water Act 1901*;

“The district” means the urban district of *Llandrindod Wells* in the county of *Radnor*;

“The Council” means the urban district council of the district; A.D. 1905.

“The clerk” and “the surveyor” respectively mean the clerk and the surveyor appointed by the Council in pursuance of the powers of any public Act;

“The district fund” and “the general district rate” mean the district fund and the general district rate of the district;

“Recreation grounds” means and includes all the public parks walks recreation and pleasure grounds vested in the Council;

“Owner” and “street” have the same respective meanings as they have in the Public Health Act 1875;

“Daily penalty” means a penalty for each day on which an offence is continued after conviction.

Terms to which meanings are assigned by enactments incorporated with this Act have in this Act and for the purposes of this Act the same respective meanings unless there is something in the subject or the context repugnant to such construction.

PART II.

RECREATION GROUNDS.

3. The Council may by agreement (but not otherwise) purchase lease take and hold the lands and hereditaments specified in the schedule hereto and delineated upon the plan signed in triplicate by John William Wilson Esquire the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred and thereon coloured red blue and brown one copy of which has been deposited in the Private Bill Office of the House of Commons one copy in the Parliament Office of the House of Lords and one copy with the clerk to the Council for the purpose of recreation grounds or open spaces and may fence the land so acquired and lay out the same and may erect such buildings as may be necessary for such purposes or in connexion therewith.

Power to acquire lands for open spaces.

4. Notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit and may from time to time sell lease

Power to retain sell &c. lands.

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A.D. 1905. — exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or interest in any lands acquired by them under this Act and not required for the purpose for which they were acquired and may sell and exchange and dispose of any rent reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Application
of moneys
from sale &c.
of lands.

5. The Council shall apply all moneys received by them in respect of any sales exchanges or disposition of lands and premises by this Act authorised to be acquired or by way of fine or premium on any lease of any such lands in or towards paying off moneys borrowed and for the time being owing under this Act or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council Provided that such proceeds when used to pay off the borrowed moneys shall not be applicable to the payment of instalments appropriations or annual repayments or to payments into sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

Council may
provide pa-
villions.

6. The Council may in such recreation grounds or open spaces erect provide maintain furnish and equip any pavilions and other buildings which may be required or convenient for the purposes of such recreation grounds and the public resorting thereto and may charge for admission to such buildings or any of them or in respect of the use thereof or of any part or parts thereof respectively Provided that the Council shall not close such recreation grounds or open spaces to the public on more than twelve days in any one year nor on more than four consecutive days on any one occasion nor on any Sunday or public holiday.

Power to
Council to
let refresh-
ment rooms.

7. The Council may let any refreshment rooms with their appurtenances belonging to them or under their control to any such person for such term not exceeding three years at any one time at such rent payable at such times under such

covenants and on such conditions and with under and subject to such rights powers privileges and authorities relating thereto respectively as the Council may think fit. A.D. 1905.

8. The Council may provide apparatus for games and recreation for the use of the public frequenting the recreation grounds and may charge for the use thereof and they may lease or grant for any term not exceeding three years the right of providing and charging for such apparatus upon such terms and conditions as they think proper and the Council may make regulations with respect to the use and payment for the use of such apparatus. Power to provide apparatus for games.

9. The Council may pay or contribute towards the payment of a public band of music for the district provided that the amount of such payment or contribution does not in any year exceed a sum equal to a rate of one penny in the pound on the assessable value of the district for the purposes of the general district rate. The Council may in any recreation ground or other place within which such band shall play enclose an area and make regulations as to the time and place for the playing of the band the payment to be made for admission within the said enclosure and for securing good and orderly conduct during the playing of the band. Power to contribute towards band.

10. The recreation grounds shall be deemed streets for the purposes of sections 24 25 and 29 of the Town Police Clauses Act 1847 and also for the purposes of so much of section 28 of that Act as relates to the following offences:— Recreation grounds to be deemed streets.

Every person who suffers to be at large any unmuzzled ferocious dog or urges any dog or other animal to attack worry or put in fear any person or animal;

Every person who rides or drives furiously any horse or carriage or drives furiously any cattle;

Every common prostitute or night walker loitering and importuning passengers for the purpose of prostitution;

Every person who wilfully and indecently exposes his person;

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language;

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Every person who wantonly discharges any firearm or discharges any missile or makes any bonfire ;

Every person who throws or lays any dirt litter ashes or night soil or any carrion fish offal or rubbish on any street.

Setting
apart and
closing
recreation
grounds for
games.

11. The Council may set apart any portion of any recreation grounds for cricket golf football lawn tennis and other games and for the drill of volunteers yeomanry or cadets or of any military or police force or for the purposes of the delivery of speeches or the holding of meetings of public or local interest and may make an agreement with any club or association by which such portion may be secured to the club or association but so that the same shall be open to the public when not in use for such games or drill or other purposes and the Council may make byelaws for regulating the use of the portions of the recreation grounds so set apart.

Power to
provide and
let chairs.

12. The Council may place or authorise any person or persons to place seats shelters or chairs in any street or in the recreation grounds or other public place for the use of the public and may if they think fit charge or allow such person or persons to charge a reasonable sum for the use of chairs and may make byelaws for regulating the use of seats shelters and chairs and for preventing injury or damage thereto.

Power to
appoint
officers.

13. The Council may appoint officers for securing the observance of this Part of this Act and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant.

Expenses
and appli-
cation of
moneys
under this
Part of Act.

14. All expenses incurred by the Council in the exercise of the powers of this Part of this Act shall be paid out of the district fund and any moneys received by the Council under this Part of this Act shall be carried to the credit of the district fund.

PART III.

STREETS AND BUILDINGS.

Approval of
plans to be

15.—(1) The approval by the Council of any plan or section of any street or building and the notice of intention to lay out or

construct such street or building shall be null and void if the execution of the work specified in such plan or section be not commenced within the following periods (that is to say):—

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—
void after
certain in-
tervals.

As to plans or sections approved after the passing of this Act within two years from the date of such approval;

As to plans or sections approved before the passing of this Act within two years from the passing of this Act;

and at the expiration of those respective periods fresh notice and deposit and approval shall unless the Council otherwise determine be requisite.

(2) The Council shall give notice of the provisions of this section to every person intending to lay out a new street or to erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or the erection of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

16. The Council may retain any drawings plans elevations sections specifications and written particulars descriptions or details deposited with them in pursuance of any enactment for the time being in force in the district or any byelaw thereunder.

Retention of
plans depo-
sited with
Council.

17. No person except with the consent of the Council shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

No buildings
allowed un-
til street
defined.

18.—(1) Where any street or road in the district repairable by the inhabitants at large is in the opinion of the Council narrow or inconvenient or without any sufficiently regular line of frontage the Council may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road The line which in any case the Council propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by and deposited with the surveyor and such plan shall be at all reasonable times

Council may
define future
line of exist-
ing streets.

A.D. 1905. — thereafter open for the inspection of the public without charge and one month at least before the Council formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested whose name and address they can ascertain. No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line.

(2) The Council if required so to do by the owner shall purchase the land lying between any such line as aforesaid and the existing building line of the street or road where the same abuts upon the street or road and the same when purchased shall vest in the Council as part of the street or road.

(3) Whenever in any of the above cases the Council shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Council shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Council requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Council under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Intersecting
streets.

19.—(1) No new street shall be laid out more than one hundred and fifty yards in length without an intersecting street.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Council may
declare where
streets begin
and end.

20. The Council may by resolution declare the point or limits at or within which any street is to be taken as beginning or ending.

21. If the footway of any street repairable by the inhabitants at large be injured by or in consequence of any excavations or other works on lands adjoining thereto the Council may repair or replace the footway injured and all damages and expenses of or arising from such injury and repair or replacement shall be paid to the Council by the owner of the lands on which such excavations or other works have been made or by the person causing or responsible for the injury.

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Recovery of
damages
caused to
footways by
excavations.

22.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Council for permission so to do and such application shall be accompanied by a plan and sections of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

Temporary
and mov-
able build-
ings.

(2) The Council shall within one month after the delivery of the plan and sections and specification signify in writing their approval or disapproval of the intended building to the person proposing to erect or set up the same.

(3) The Council may attach to their approval any conditions which they may deem proper with regard to the sanitary arrangements of such buildings the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such building is commenced erected or set up without such application accompanied by such plan sections and specification or after the disapproval of the Council or before the expiration of one month without such approval or is in any respect not in conformity with any condition attached by the Council to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Council or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty not exceeding the like amount and the Council may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered summarily as a civil debt from the owner of

[Ch. cl.] *Llandrindod Wells Urban District Council* [5 EDW. 7.]
Act, 1905.

A.D. 1905. the building or from the person erecting or setting up the same
— at their discretion.

(5) The following buildings and works shall be exempt
from the operation of this section :—

(A) Buildings expressly exempt from the operation of the
Acts or byelaws for the time being in force within
the district in respect of new buildings and any tent
not remaining for more than seven days ;

(B) Any wooden or other structure or erection of a movable
or temporary character erected or set up for use
during the construction alteration or repair of any
building but such structure or erection shall be pulled
down or removed immediately after the completion
of such construction alteration or repair and if not so
taken down or removed the Council may cause the
same to be pulled down or removed and any expense
incurred by them in or about the pulling down or
removal of the building may be recovered summarily
as a civil debt from the owner of the building or from
the person erecting or setting up the same at their
discretion ; and

(c) Any wooden or other structure or erection erected or
set up for the purpose of protecting or of preventing
the acquisition of right of light.

Fencing
lands adjoin-
ing streets.

23. If any land (other than land now forming part of any
common) adjoining any street is allowed to remain unfenced or
the fences thereof are allowed to be or remain out of repair and
such land is owing to the absence or inadequate repair of any
such fence a source of danger to passengers or is used for any
immoral or indecent purpose or for any purpose causing incon-
venience or annoyance to the public then after the expiration of
fourteen days' notice from the clerk to the owner or occupier of
the same or without any notice if the Council are unable after
diligent inquiry to discover the name or place of abode of such
owner or occupier the Council may cause the same to be fenced
or may cause the fences to be repaired in such manner as they
think fit and the expenses thereby incurred shall be recovered
from such owner or occupier summarily as a civil debt.

Trees or
shrubs over-
hanging

24. Where any tree hedge or shrub overhangs any street
or footpath so as to obstruct or interfere with the light from

any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Council may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Council may themselves carry out the requirements of their notice doing no unnecessary damage.

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 streets and
 footpaths.

25. Nothing in this Part of this Act or any byelaws to be made thereunder shall apply to any buildings (not being a dwelling house) belonging to any railway company and used by such company as a part of or in connexion with their railway.

For protec-
 tion of rail-
 way com-
 panies.

PART IV.

PUBLIC BUILDINGS.

26. The Council may with the consent of the Local Government Board acquire or construct hold furnish maintain insure and carry on a town hall public hall assembly rooms and other public buildings with all necessary and suitable offices committee rooms entertainment rooms ante-rooms refreshment rooms kitchens cloak rooms lavatories promenades gardens outbuildings conveniences and appurtenances and may for the purposes thereof by agreement acquire land buildings and premises and alter and adapt the same and the county council of Radnorshire may agree with the Council for taking a portion of such buildings on lease or otherwise and may if agreed contribute towards the cost of the construction of such buildings.

Power to
 provide town
 hall and
 other build-
 ings.

27. The Council may grant with or without charge the use of the whole or any part of any public buildings acquired or constructed by them under the powers of this Act for the purpose of any public or other meetings or any musical or other entertainment or for other purposes approved by them or the Council may let the same on such terms and conditions as they think fit.

Use and
 letting of
 public
 buildings.

28. Any moneys received by the Council in connexion with the execution of the purposes of this Part of this Act shall be carried to the credit of the district fund and all expenses incurred by them in connexion therewith shall be paid out of the said fund and the general district rate.

Application
 of moneys
 under this
 Part of Act.

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PART V.

HACKNEY CARRIAGES.

Powers of
inspector of
public
vehicles.

29. Any person appointed by the Council in writing may examine all hackney carriages and other public vehicles plying for hire within the district and shall see that the laws and byelaws relating to such public vehicles are duly observed. If any proprietor driver conductor or other person shall obstruct or hinder such person so appointed as aforesaid in the execution of his duty such proprietor driver conductor or person shall be liable to a penalty not exceeding forty shillings.

Public vehi-
cles plying
at railway
station.

30. The provisions of the Town Police Clauses Acts 1847 and 1889 and the byelaws of the Council for the time being in force with respect to public vehicles shall be as fully applicable in all respects to public vehicles within the district conveying passengers to or from any railway station within the district as if such railway station were a public stand for public vehicles :

Provided always that the provisions of this section shall not apply to any vehicle belonging to or used by any railway company for the purpose of carrying passengers and their luggage to or from any of their railway stations or to the drivers or conductors of such vehicles.

Occasional
licences may
be granted.

31. An occasional licence for a public vehicle may be granted by the Council to be in force for such day or days or other period less than one year as may be specified in the licence.

PART VI.

FIRE BRIGADE.

Power to
police con-
stable to
enter and
break open
premises in
case of fire.

32. Any police constable acting under the orders of his superior officer and any member of the fire brigade of the Council being on duty and any officer of the Council may enter and if necessary break into any building in the district being or reasonably supposed to be on fire or any building or land adjoining or near thereto without the consent of the owner or occupier thereof respectively and may do all such acts and things as they deem necessary for extinguishing fire in any such building or for protecting the same or rescuing any person or property therein from fire.

33.—(1) The captain or superintendent of the fire brigade of the Council or other officer of such fire brigade for the time being in charge of the engine or other apparatus for extinguishing fires attending at any fire within the district shall from the time of his arrival and during his presence thereat have the sole charge and control of all operations for the putting out of such fires whether by the fire brigade of the Council or any other fire brigade including the fixing of the positions of fire engines and apparatus the attaching of hose to any water pipes or water supply and the selection of the parts of the building on fire or of adjoining buildings against which the water is to be directed.

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Captain of
fire brigade
or other offi-
cer to have
control of
operations.

(2) The officer in charge of the police at any fire in the district shall have power to stop or regulate the traffic in any street whenever in his opinion it is necessary or desirable to stop or regulate such traffic for the purpose of extinguishing the fire or for the safety or protection of life or property and any person who wilfully disobeys any order given by such officer in pursuance of this section shall be liable to a penalty not exceeding five pounds.

34. The Council and the local authority of any borough or urban or rural district may enter into and carry into effect agreements for the common use of any fire engines with their appurtenances and firemen belonging to the Council or such local authority or for mutual assistance in case of fire.

Agreements
with local
authorities
for common
use of fire
appliances.

PART VII.

FINANCIAL MATTERS.

35. The Council may from time to time independently of any other borrowing power borrow at interest on the following securities for the following purposes (that is to say):—

Power to
Council to
borrow.

(A) For and in relation to the purchase of lands and the development and laying out of the same as recreation grounds or open spaces including the erection of pavilions and other buildings such sums as the Local Government Board may sanction on the security of the district fund and general district rate;

(B) For paying the costs of this Act as herein-after defined on the security of the district fund and general district rate the sum necessary for the purpose;

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A.D. 1905. — and with the sanction of the Local Government Board such further sums on the security of the district fund and general district rate as the Council may require for any of the purposes of this Act.

Mode of
raising
money.

36. The Council may raise all or any moneys which they are authorised to borrow under this Act either by mortgage or by issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another Provided that the provisions of this Act with respect to the sinking fund to be provided for the repayment of moneys raised under this Act shall apply to any money raised under the Local Loans Act 1875 in lieu of the provisions of section 15 of that Act.

Certain
regulations
of Public
Health Act
as to bor-
rowing not
to apply.

37. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which the Council may borrow under this Act shall not be reckoned.

Provisions
of Public
Health Act
as to mort-
gages to
apply.

38. The following sections of the Public Health Act 1875 shall extend and apply (*mutatis mutandis*) to and in relation to mortgages granted under this Act (that is to say) :—

Section 236 (Form of mortgage) ;

Section 237 (Register of mortgages) ;

Section 238 (Transfer of mortgages).

Periods for
payment off
of money
borrowed.

39. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed period") following (that is to say) :—

As to moneys borrowed for the purpose (A) in the said section mentioned within such period not exceeding sixty years as the Local Government Board may prescribe ;

As to moneys borrowed for the purpose (B) in the said section mentioned within five years from the date of the passing of this Act ;

As to moneys borrowed with the approval of the Local Government Board within such periods as they may sanction

40. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of these methods and partly by another or others of them.

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Mode of
payment off
of money
borrowed.

41. The following sections of the Act of 1901 are incorporated herewith and shall apply (*mutatis mutandis*) to and in relation to moneys borrowed by the Council under this Act:—

Incorporation of parts
of Act of
1901 relating to
finance.

Section 72 Sinking fund ;

Section 73 Protection of lender from inquiry ;

Section 74 Council not to regard trusts ;

Section 75 Appointment of a receiver ;

Section 77 Annual return to Local Government Board ;

Section 78 Application of money borrowed ;

Section 81 Inquiries by Local Government Board.

42. The Council may except as herein-after provided re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Act or the Act of 1901 which have not been repaid and are intended to be forthwith repaid or in respect of any such moneys which have been repaid by the temporary application of funds at the disposal of the Council within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow. Provided that the Council shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose. Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period. Section 76 of the Act of 1901 is hereby repealed.

Power to re-borrow.

PART VIII.

MISCELLANEOUS.

43.—(1) The Council may if they think fit grant a gratuity of any sum (not exceeding one year's pay) to any of their officers or servants who may be disabled or injured in their service or

Power to
grant gra-
tuities to
officers and
servants.

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A.D. 1905. may become incapacitated through age or other infirmity or to the widow or family of any such officer or servant who may die in their service.

(2) Every such gratuity or contribution shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

Consent of Council to be in writing.

44. All consents given by the Council under this Act shall be given in writing and unless otherwise prescribed shall be given under the hand of the clerk.

In executing works for owner Council not liable for damage.

45. Whenever the Council under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Council or of any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be deemed to be part of the expenses payable by such owner or occupier and shall be recoverable accordingly.

Compensation how to be determined.

46. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in manner provided by the Public Health Acts.

Service of notice on Council.

47. Except where otherwise expressed to the contrary any notice to or demand on the Council under this Act may be served on the Council by being delivered to the clerk or by being sent through the post in a prepaid letter addressed to the clerk.

Crown rights.

48. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Costs of Act.

49. The costs charges and expenses preliminary to and of and incidental to the preparing applying for and obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the district fund and general district rate or out of moneys borrowed under the provisions of this Act.

[5 EDW. 7.] *Llandrindod Wells Urban District Council* [Ch. cl.]
Act, 1905.

The SCHEDULE referred to in the foregoing Act. A.D. 1905.

All that piece of land known as the Pump House Common and also the land covered with water and known as the Lake together with the islands thereon in the parish of Llandrindod (Urban) and County of Radnor together with so much land surrounding the said lake as may be sufficient for the construction of a roadway (not less than 42 feet wide) round the said lake.

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